

23STCV18222 23STCV18222

County: los-angeles

Division: Civil Law and Motion

Department: 514

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Case Number: 23STCV18222 Hearing Date: August 24, 2026 Dept: 514

Navas v. Cal Premier Roofing, LLC

23STCV18222

Motion to Compel Plaintiff to Submit to Mental Examination

Tentative Ruling

The motion is denied without prejudice.

“A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Code Civ. Proc., § 2032.310, subd. (b).)

“An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc., § 2032.320, subd. (d).) “The court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these ‘diagnostic tests and procedures’—fully and in detail—is to list them by name.” (Carpenter v. Super. Ct. (2006) 141 Cal.App.4th 249, 260.)

Here, however, Defendant does not include in its motion the

proposed date, time, place, manner, conditions, or scope of the examination with Dr. Xavier Salazar. Among other things, Defendant does not identify the date or time of the proposed examination or state what tests will be administered.

On that basis, the Court DENIES the motion without prejudice.

Moving party is ordered to give notice.